

Nepal Railway Act, 2022

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Nepal Railway Act, 2079".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Authority Letter" means a travel authority letter issued pursuant to Sub-section (2) of Section 23.

(b) "Carriage" means the carriage of luggage or goods by rail.

(c) "Carriage Charge" means the charge levied for the carriage of luggage or goods, and said term also includes any charge applicable for loading, unloading, or transshipment of goods.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules or regulations made under this Act.

(e) "Consignee" means the person named as the consignee in the railway receipt.

(f) "Consignor" means the person named as the consignor in the railway receipt, and said term also includes the person who entrusts goods to the Board for carriage as a consignor.

(g) "Board" means the Nepal Railway Board established pursuant to Section 3.

(h) "Fare" means the fare amount charged for providing railway service to a passenger.

(i) "Tariff Book" means the railway Tariff Book as per Section 14.

(j) "Ministry" means the Ministry of the Government of Nepal dealing with railway matters.

(k) "Goods" means containers, pallets, live animals, or any other goods or commodities, and said term also includes similar means or contrivances used for the consolidation of any animals or commodities for the purpose of carriage.

(l) "Passenger" means a person who travels by means of a train upon purchasing a ticket or obtaining an Authority Letter.

(m) "Luggage" means the belongings carried by a passenger with themselves during the course of travel, and said term also includes luggage registered and entrusted to the Board.

(n) "Train" means a public vehicle running on a track with the aid of machinery, and said term also includes metro rail and monorail.

(o) "Railway" means a train or any part thereof used for the carriage of passengers or the conveyance of luggage or goods, and said term includes the following items, apparatus, structures, or means:-

- (1) Land, trees, boundary marks, walls relating to the railway,
- (2) The track or any part of such track, and trains, engines, and all related materials running on said track,
- (3) Sidings, yards, and branches used for railway purposes,
- (4) Apparatus constructed for all types of electricity supply and distribution used for railway purposes,
- (5) Rolling stock, stations, offices, warehouses, workshops, hospitals, security posts, factories, machinery and tools, roads and lanes, inspection rooms, rest houses, water taps, water supply apparatus, staff quarters, passenger dining halls, schools established for the families of staff, and other construction structures built for railway purposes, or
- (6) Vehicles put into use for railway purposes on any road.

(p) "Railway Administrator" means the Railway Administrator appointed pursuant to Section 56.

(q) "Railway Receipt" means the receipt issued by the Board after accepting goods for carriage.

(r) "Railway Station" means the place where a train stops for boarding and alighting passengers and loading and unloading goods.

(s) "Demurrage Charge" means the charge payable for keeping goods at any place within the railway after the allowed time for keeping such goods has expired.

(t) "Forwarding Note" means the forwarding note determined pursuant to Section 38 for the carriage of goods.

(u) "Station Office" means the Station Office of the Board.

(v) "Station Master" means the employee of the Board designated to work as the head of the Station Office.

4. Board to be an Autonomous and Corporate Body: (1) The Board shall be an autonomous and corporate body with perpetual succession, and shall have a legal personality.

(2) As a legal entity, the Board may exercise powers, perform duties, and discharge liabilities in accordance with the prevailing law. 5. Board of Directors of the Board: (1) There shall be a Board of Directors in the Board for the conduct of business to be carried out on behalf of the Board.

(2) The Board of Directors of the Board shall be constituted as follows:-

(a) Minister or Minister of State of the Government of Nepal dealing with railway matters - Chairperson

(b) Secretary of the Ministry - Member

(c) Secretary or Joint Secretary designated by him/her, Ministry of Finance - Member

(d) Secretary or Joint Secretary designated by him/her, Ministry of Home Affairs - Member

(e) At least two persons, including at least one woman, nominated by the Ministry from among persons who have obtained at least a post-graduate degree in Chartered Accountancy, Commerce, Management, or Transport Management from a recognized educational institution and have at least five years of experience in the relevant field - Member

(f) At least two persons, including at least one woman, nominated by the Ministry from among persons who have obtained at least a post-graduate degree in Civil, Electrical, or Mechanical Engineering from a recognized educational institution and have at least five years of experience in the relevant field - Member

(g) Railway Administrator - Member-Secretary

(3) The following person shall not be eligible for nomination as a member pursuant to clauses (e) and (f) of Sub-section (2): -

- (a) A non-Nepali citizen,
- (b) A person who has not completed twenty-five years of age,
- (c) A person who has been blacklisted pursuant to prevailing law for failing to repay a loan from a bank or financial institution,
- (d) A person who has been convicted of an offense related to corruption, rape, human trafficking and transportation, narcotic drug sale, distribution and transportation, money laundering, passport misuse, abduction, or a criminal offense involving moral turpitude, or has been sentenced to imprisonment for three years or more for any other criminal offense, and such verdict has become final,
- (e) A person who has obtained permanent residency of a foreign country, or
- (f) A person holding an office of profit.

Explanation: For the purposes of this clause, "office of profit" means a position that receives remuneration or benefits from the government treasury.

(4) The term of office of members nominated pursuant to clauses (e) and (f) of Sub-section (2) shall be four years.

(5) Notwithstanding anything contained in Sub-section (4), the Ministry may remove a member nominated pursuant to clauses (e) and (f) of Sub-section (2) from office at any time in the following circumstances:-

- (a) If he/she fails to fulfill his/her official responsibilities,
- (b) If he/she acts against the interests of the Board,
- (c) If he/she engages in misconduct, or
- (d) If he/she lacks competence.

(6) Before removing a member pursuant to Sub-section (5), he/she shall be given a reasonable opportunity to present his/her defense.

(7) The office of a member nominated pursuant to clauses (e) and (f) of Sub-section (2) shall become vacant in the following circumstances:-

- (a) If he/she resigns from his/her office,
 - (b) If his/her term of office expires,
 - (c) If he/she becomes disqualified under Sub-section (3),
 - (d) If he/she is removed from membership pursuant to Sub-section (5), or
 - (e) If he/she dies.
6. Functions, Duties, and Powers of the Board: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Board shall be as follows:-

- (a) To provide necessary suggestions to the Government of Nepal regarding policies to be adopted for the development and expansion of railways and railway services,
- (b) To carry out or cause to be carried out construction works of necessary structures for the operation of railway services,
- (c) To operate or cause to be operated railway services in a safe, standard, regular, and reliable manner,
- (d) To make necessary coordination with provincial governments and local levels regarding the expansion and operation of railway services,
- (e) To carry out or cause to be carried out maintenance works of structures related to railway operation,
- (f) To approve annual plans, programs, and budgets of the Board,
- (g) To monitor and evaluate plans and programs operated under the Board, or cause them to be monitored and evaluated, and

(h) To carry out or cause to be carried out other functions as prescribed. 7.

Meeting and Decision of the Board: (1) A meeting of the Board shall be held at least once every three months. (2) The meeting of the Board shall be held on the date, time, and place designated by the Chairperson. (3) The Member-Secretary of the Board shall make available the agenda for discussion in the meeting to all members at least forty-eight hours before the meeting. (4) The presence of more than fifty percent of the total number of members of the Board shall constitute a quorum for a meeting of the Board. (5) The Chairperson of the Board shall preside over the meeting of the Board. (6) The opinion of the majority shall prevail in a meeting of the Board, and in case of a tie, the person presiding over the meeting of the Board shall cast the deciding vote. (7) The Board may invite any expert related to the work of the Board to participate in a meeting of the Board. (8) The decision of a meeting of the Board shall be certified by the person presiding over the meeting of the Board and kept safely by the Member-Secretary. (9) Other procedures relating to meetings of the Board shall be as determined by the Board itself. (10) The Chairperson and members of the Board shall receive meeting allowances as prescribed for participating in meetings of the Board. 8. Not to Participate in Meeting: (1) The Chairperson and a member of the Board having a personal interest in any matter to be discussed in a meeting of the Board shall not be entitled to participate in the meeting on that matter. (2) If the Chairperson or any member has a direct or indirect interest in a matter on the agenda after receiving the agenda for discussion in the meeting, he/she shall self-declare such interest and inform the Member-Secretary of the Board that he/she will not participate in that meeting. (3) Notwithstanding anything contained in Section 7, under the circumstances mentioned in Sub-section (1), if the Chairperson is unable to participate in the meeting, the Secretary of the Ministry shall preside over the meeting of the Board. Chapter-3 Powers of the Government of Nepal 9.

Power to Give Orders or Directions: (1) The Government of Nepal may give necessary directions to the Board regarding the operation of trains and railway services. (2) If it appears that any property of the railway has been damaged, is likely to be damaged, or obstruction has occurred in the enjoyment of such property, the Government of Nepal may order the Board, any person, institution, or body to stop such an act. (3) If the Board does or attempts to do any act contrary to this Act or the rules made under this Act, the Government of Nepal may order to stop such act. (4) The Government of Nepal may, by publishing a notice in the Nepal Gazette, grant exemption or concession in any or all fares payable to the Board, in prescribed circumstances, so that persons with disabilities, specific persons, or groups of persons as prescribed do not have to pay or pay less fare. 10. Operation of Railway Services in Foreign Territory: (1) The Government of Nepal may, on the basis of reciprocity, make necessary arrangements for the operation or causing to be operated railway services up to the territory of one or more foreign nations, or from a foreign nation up to the territory of Nepal, or through the territory of Nepal to another foreign nation. (2) For the purpose of Sub-section (1), the Government of Nepal may, by agreement with the concerned foreign nation, determine the basis, conditions, methods, and procedures for the operation of railway services. (3) If, pursuant to an agreement made under Sub-section (2), railway services of a foreign nation are to be operated within Nepal, the provisions of the prevailing Nepal law shall apply while such railway services are being operated within Nepal. 11. May Constitute Security Unit: (1) Upon the request of the Board, the Government of Nepal may constitute a separate security unit for the security of the railway. (2) Until a security unit under Sub-section (1) is constituted, the Government of Nepal shall make arrangements for the security of the railway. (3) Other provisions relating to the security unit to be constituted under Sub-section (1) shall be as prescribed. Chapter-4 Inspection of Railway and Determination of Fare 12. Must Cause Inspection to Operate Railway: The Board shall cause necessary inspections to be carried out from time to time by experts regarding whether or not the railway is suitable from a technical and safety point of view for operation. 13.

To Prescribe Fare and Charges: (1) The Board shall prescribe the fare for passengers and the carriage charges for luggage and goods, and demurrage charges. (2) The Board shall, pursuant to Sub-section (1), prescribe the circumstances under which demurrage charges are applicable and classify items for that purpose. (3) Details of the fares and charges prescribed pursuant to Sub-section (1) shall be mentioned in the Tariff Book. (4) The basis for prescribing fares and charges pursuant to Sub-section (1) shall be as prescribed. 14. Provision for Tariff Book: The Board shall make provisions for a Tariff Book to regularize and systematize arrangements related to fares and charges. 15. Must Publish Timetable and Rate of Fare: The Board shall publish the timetable for arrival and departure of trains and the fare rate for travel from one station to another for information at least seven days before the date on which such fare rate becomes effective. Chapter-5 Driver's License 16. Not to Drive Train Without License: No person shall drive a train without obtaining a train driver's or assistant driver's license. 17. License for Train Driver or Assistant Driver: (1) A person desiring to obtain a train driver's or assistant driver's license shall submit an application to the Railway Administrator through any office of the Board in the format as prescribed, attaching the following documents:- (a) Copy of citizenship certificate or identification certificate issued by the concerned country, (b) Copy of the certificate obtained pursuant to clause (b) of Sub-section (1) of Section 18, and (c) Certificate of fitness given by a doctor recognized by the Government of Nepal after examining his/her health regarding the matters pursuant to Sub-section (2) of Section 18. (2) If, upon examining the application received pursuant to Sub-section (1), it appears appropriate to grant a train driver's or assistant driver's license, the Railway Administrator shall issue the train driver's or assistant driver's license as prescribed. (3) Provisions relating to the renewal and cancellation of a train driver's or assistant driver's license, and the fee chargeable for issuing or renewing the license, shall be as prescribed. 18.

Qualification for Train Driver or Assistant Driver: (1) A person fulfilling the following qualifications shall be eligible to obtain a driver's or assistant driver's license pursuant to Section 17:- (a) Passed at least a Diploma level in Mechanical, Electrical, Electronics, or Automobile subjects from a recognized educational institution, (b) Obtained a certificate proving competence to drive trains after undergoing training as a train driver or assistant driver from a recognized training institution, (c) Completed twenty-one years of age and not exceeding forty years of age, and (d) In the case of a train driver, worked as an assistant train driver for at least three years. (2) Notwithstanding anything contained in Sub-section (1), the following person shall not be able to obtain a train driver's or assistant driver's license:- (a) A person not fit to drive a train due to physical or mental illness, (b) A person whose eyesight is weak and even with glasses does not have normal vision, (c) A person who cannot hear ordinary sounds or noise, or cannot see and hear signals, (d) A person having color blindness such that he/she cannot instantly distinguish colors like red, green, yellow, (e) A person with night blindness, or (f) A person whose hands or legs are weak and cannot perform work. 19. Validity of Foreign Driver's License: If a person has obtained a train driver's or assistant driver's license from a foreign country, and such person submits an application pursuant to Section 17 to drive a train in Nepal, the Railway Administrator may, upon collecting the fee applicable for a train driver's or assistant driver's license, issue a train driver's or assistant driver's license under this Act. 20. Not to Give License to Other Person: A train driver or assistant driver shall not give his/her license to another person for the purpose of driving a train. 21. Not to Drive Train After Consuming Intoxicating or Other Narcotic Substances: A train driver or assistant driver shall not drive a train after consuming intoxicating or any other type of narcotic substances. Chapter-6 Ticket and Authority Letter 22. Not to Travel Without Ticket or Authority Letter: No person shall enter a railway platform or travel by train without obtaining a ticket or Authority Letter. 23.

To Issue Ticket or Authority Letter: (1) The Board shall issue a ticket to a person desiring to travel by train after the fare amount payable for the journey is paid. (2) Notwithstanding anything contained in Sub-section

(1), the Board may issue an Authority Letter as prescribed so that a person may travel by train without paying fare. (3) A passenger must purchase a ticket by paying the fare for travel by train or obtain an Authority Letter for that purpose. (4) If the Board has installed Automatic Ticket Vending Machines at railway stations for the convenience of passengers, a passenger may obtain a ticket from such machine by paying the fare up to the destination station. (5) The format of the railway ticket, and the level or class of railway travel, shall be as determined by the Board. 24. May Refuse Travel: (1) The Board may refuse to allow any person in the following circumstances to travel by train:- (a) Suffering from a disease for which the Government of Nepal or a provincial government has prohibited travel under the prevailing law relating to communicable diseases, (b) Recommended by a doctor that traveling by train would adversely affect his/her health, (c) Having consumed intoxicating substances or narcotic drugs, allowing him/her on the journey may cause disturbance in the train or harm, damage, or inconvenience to other passengers, (d) Carrying arms, other than security personnel deployed for the security of the train, or (e) Engaged in suspicious activities likely to damage railway property or obstruct travel. (2) Notwithstanding anything contained in clauses (a) and (b) of Sub-section (1), the Board may, if necessary, permit the person mentioned in those clauses to travel by keeping him/her separate from other persons. (3) If any person mentioned in clause (c), (d), or (e) of Sub-section (1) is found traveling in a train, the ticket checker may remove him/her from the train at the nearest railway station at any time. 25. Must Travel Through Designated Path: A passenger must only use the path designated for that purpose when entering or leaving a train or railway station. 26. Cancellation of Ticket and Refund of Amount: Provisions relating to the cancellation of a railway ticket and the refund of the fare amount for the cancelled ticket shall be as mentioned in the Tariff Book. 27.

28. To Collect Fare: (1) The ticket checker shall immediately collect the following amounts as fare from a person traveling by train in the following circumstances, along with an additional amount equal to the fare applicable for not having a ticket or Authority Letter:-

(a) If any person is found traveling without a ticket or Authority Letter, or using an already used ticket or Authority Letter, the fare applicable from the place where he/she commenced the journey to his/her destination,

(b) If any person is found traveling in a class higher than the class mentioned in the ticket or Authority Letter, the balance fare after deducting the fare he/she has paid or is entitled to as per the Authority Letter from the actual fare payable.

(2) If a passenger fails to pay or refuses to pay the full amount under Sub-section (1), the ticket checker may remove him/her from the train at a railway station at any time.

(3) A passenger removed at a railway station pursuant to Sub-section (2) shall be handed over by the ticket checker to a security personnel, and written information thereof shall be provided to the Station Master.

(4) If, upon examining the written information received pursuant to Sub-section (3), it appears reasonable, the Station Master may order the passenger who did not pay the fare to pay the fare along with an additional amount equal thereto, and may impose a penalty of five times the fare amount.

(5) A person dissatisfied with the penalty imposed by the Station Master under Sub-section (4) may file a complaint with the Railway Administrator within thirty-five days from the date of such decision.

(6) The decision made by the Railway Administrator on the complaint filed under Sub-section (5) shall be final. Chapter-7

Carriage of Luggage and Compensation

Carriage of Luggage: (1) Any passenger may cause luggage to be carried by train by paying the carriage charge as mentioned in the Tariff Book and registering the luggage with the Board. (2) Notwithstanding anything contained in Sub-section (1), a passenger may take with themselves as luggage, without paying any carriage charge, items exempted as prescribed from paying carriage charges. (3) Notwithstanding anything contained in Sub-sections (1) and (2), the following items shall not be carried as luggage:- (a) Goods or items prohibited for carriage under prevailing law, (b) Goods or items determined by the Board as dangerous for carriage by railway as luggage, (c) Goods or items exceeding the size and weight determined by the Board, (d) Goods or items subject to customs duty under prevailing law where such duty has not been paid, resulting in the concerned body prohibiting their carriage, and (e) Live animals or other items as prescribed. (4) When registering luggage pursuant to Sub-section (1), the Board shall issue a registration receipt in the format determined by it. (5) The registration receipt issued pursuant to Sub-section (4) shall contain the following particulars:- (a) Number of luggage pieces and their weight, (b) Date and time of taking charge of the luggage for carriage, (c) Place or station from which the luggage is consigned and to which it is to be delivered, (d) Date determined for delivery of the luggage, and (e) Other necessary details regarding carriage and charges. (6) If any passenger is found to have carried by rail, by concealing, any item or live animal as mentioned in clause (a), (b), or (e) of Sub-section (3), the railway employee shall immediately offload such passenger and item or live animal at the next upcoming station and hand over the passenger carrying such item as per clause (a) or (b) of that sub-section to the concerned authorized official for action under prevailing law. 30.

May Refuse Carriage of Luggage: If the packaging of any piece of registered luggage is found defective, not properly packed, or clearly damaged, the Board may refuse to carry such luggage. 31.

Board Not Liable: The Board shall not be liable for any loss or damage caused to luggage carried by a passenger with themselves without registering it with the Board, except when such loss or damage is caused due to the act of an employee of the Board. 32.

Liability Regarding Luggage: (1) The Board shall be liable for the complete or partial loss of, damage to, or delay in delivery of registered luggage from the time it is accepted for carriage until its delivery. (2) Notwithstanding anything contained in Sub-section (1), the Board shall not be liable for the loss of, damage to, or delay in delivery of luggage due to the following reasons:- (a) Caused by the fault of the passenger, (b) Caused by an order given by the passenger, except where there is fault of the Board, (c) Caused due to the nature of luggage being fragile, not declared in advance, or (d) Caused due to circumstances beyond the control of the Board, which could not be prevented. (3) The burden of proving that the luggage was lost, damaged, or delivery delayed due to any reason mentioned in Sub-section (2) shall be on the Board. 33.

Delivery of Luggage: (1) The Station Master shall deliver the luggage to a passenger only after the passenger presents the registration receipt and pays any outstanding amount, if any. (2) Notwithstanding anything contained in Sub-section (1), if a passenger is unable to present the registration receipt, but the Station Master is satisfied that the luggage belongs to him/her, such luggage may be delivered to him/her. 34.

Luggage Deemed Lost: (1) If luggage registered is not delivered to the passenger or handed over to any authorized official within seven days from the date the passenger requests the concerned Station Master to receive his/her registered luggage, such luggage shall be deemed lost. (2) If the luggage deemed lost under Sub-section (1) is found within fifteen days, the Station Master shall immediately inform the concerned passenger and hand over such luggage. If the luggage is so handed over, and the passenger has already received any compensation for the luggage, such amount shall be refunded. (3) If the concerned passenger does not come to claim the luggage within thirty days from the date of travel, ownership of such luggage may be vested in the Board by completing the prescribed procedure. 35.

Compensation for Loss, Damage, or Delay in Delivery of Luggage: (1) The compensation payable by the Board to the concerned person for the complete or partial loss of or damage to any luggage shall be as follows:- (a) If the value of the luggage was declared and carried, based on the declared value, (b) If the value was not declared pursuant to clause (a), based on the prevailing market value of such luggage at the destination, and (c) If the prevailing market value at the destination pursuant to clause (b) cannot be ascertained, based on the actual value of such luggage. (2) While determining the value pursuant to clause (b) or (c) of Sub-section (1), the type and quality of the luggage at the time of its registration shall also be taken as a basis. (3) If the Board is required to pay compensation for the loss of or damage to any luggage, in addition to providing the compensation mentioned in Sub-section (1), the carriage charge and other charges, if any, collected for the lost or damaged luggage shall also be refunded. (4) If any loss or damage occurs due to delay in delivering any luggage, the Board shall pay to the concerned person an amount equal to the damage caused to such luggage. (5) If there is partial damage to luggage and also delay in delivery, compensation may be claimed based on the damage to the luggage or the delay. (6) Except under circumstances beyond control, if the Station Master delays delivering the luggage beyond the date mentioned in the luggage registration receipt, the Board shall pay to the concerned person, as compensation, an amount calculated at the rate of fifty rupees per kilogram per day of delay from the date of delay. Provided that, if the person who registered the luggage does not come to receive such luggage within the determined date for delivery, such compensation amount shall not be paid to him/her. 36. Compensation to be Paid Based on Actual Value: (1) Notwithstanding anything contained elsewhere in this Chapter, if any registered luggage is lost, damaged, or its delivery delayed due to the malice or negligence of any officer of the Board, the Board shall pay the person concerned an amount equal to the actual value of the luggage as compensation. (2) The Board may recover the compensation amount paid under Sub-section (1) from the officer who acted with malice or negligence. 37.

Application for Compensation of Luggage: (1) A person seeking compensation under this Chapter shall submit an application to the Railway Administrator through any of the following places within fifteen days from the date the luggage was registered and entrusted to the Board for carriage:- (a) The railway station where the luggage was entrusted, (b) The railway station where the luggage is to be delivered, or (c) The Central Office of the Board. (2) The Railway Administrator shall make a decision within fifteen days from the date of receiving the application under Sub-section (1). (3) A person dissatisfied with the decision made by the Railway Administrator under Sub-section (2) may appeal to the concerned District Court within thirty-five days from the date of such decision. Chapter-8 Carriage of Goods and Compensation 38. Must Submit Forwarding Note for Goods to be Carried: (1) A consignor desiring to carry goods by rail shall fill in a Forwarding Note in the format determined by the Board and submit it to the concerned Station Master. (2) The Forwarding Note under Sub-section (1) must be clearly filled in by the consignor, and the Board shall not be liable for the consequences arising from the Forwarding Note not being clearly filled in. (3) The Station Master shall immediately check, or cause to be checked, in the presence of the consignor, whether the goods mentioned in the Forwarding Note under Sub-section (1) are correct or not. (4) If, upon checking under Sub-section (3), doubt arises as to whether any goods are prohibited or not, the Station Master shall send such goods for examination to the concerned body, and the cost incurred for such examination shall be borne by the consignor. (5) If, upon examination under Sub-section (4), any goods are proven to be prohibited goods, the Station Master shall hand over the concerned person along with such goods to the concerned body for action under prevailing law. 39.

Acceptance of Goods for Carriage: (1) The Station Master may accept for carriage goods or items other than those prohibited for carriage under prevailing law. (2) After accepting goods for carriage under Sub-section

(1), a Railway Receipt shall be issued in the format determined by the Board. (3) The Railway Receipt under Sub-section (2) shall also mention the following particulars:- (a) Full name, surname, address, and contact number of the consignor, (b) Description of the goods, (c) Weight of the goods, or other information if weight cannot be ascertained, (d) In the case of goods less than a wagon load, the number of packages and details of packaging, (e) List of documents attached with the Forwarding Note, (f) Name of the destination station, (g) Full name, surname, address, and contact number of the consignee, and (h) Other necessary particulars. (4) A single or separate Railway Receipts may be issued as required for the carriage of goods. 40. Must Indicate Damage in Railway Receipt: When accepting visibly damaged goods for carriage, the condition of such goods shall be mentioned in the Railway Receipt. 41. May Determine Axle Weight of Wagon: (1) The Board may determine the maximum axle weight of a wagon. (2) The Board shall not load any goods on a train for carriage exceeding the maximum axle weight determined under Sub-section (1). 42. Goods May be Carried by Declaring Value: (1) Goods may be carried by declaring their value in the Railway Receipt. (2) If goods are carried by declaring their value under Sub-section (1), the carriage charge payable therefor shall be as mentioned in the Tariff Book. 43. Must Pay Carriage and Other Charges: (1) The consignor shall pay to the Board the carriage charge payable for the carriage of goods. (2) If the carriage charge payable by the consignor under Sub-section (1) remains unpaid, the consignee shall pay such carriage charge. (3) Demurrage charges and warehouse charges arising from reasons for which the consignee is liable, or charges for weighing any goods, shall be paid by the consignee. 44. Consignor Liable: (1) Except for the wrongful act or omission of any employee of the Board, the consignor shall be liable for any loss or damage occurring due to the absence or insufficiency of any documents. (2) The consignor shall be liable for the consequences arising from goods not being packed or not being properly packed, and if any loss or damage is caused to the railway due to this, the consignor shall also bear compensation for such loss or damage. 45.

Delivery of Goods: (1) After the goods arrive at the destination, the consignee may take delivery of the goods from the concerned station by presenting the Railway Receipt. (2) Notwithstanding anything contained in Sub-section (1), if the consignee is unable to present the Railway Receipt, the concerned Station Master may also deliver the goods based on his/her identity card or other evidence. (3) While delivering goods, the concerned Station Master shall obtain a receipt from the consignee acknowledging receipt of the goods, and if any amount is to be received from him/her, collect that as well and then deliver the goods. (4) Notwithstanding anything contained in Sub-sections (1) and (3), the consignee shall take delivery of his/her goods from the following places:- (a) If the goods are not required to remain under the supervision of the Board, from the place where they are delivered to the concerned official at his/her location or warehouse as per law, and (b) If delivered to a private or government warehouse within a dry port or container freight station, or an area like an export processing zone, from such place. (5) If the consignee does not come to take delivery of goods within thirty days of their arrival at the destination, other provisions including ownership and delivery of such goods shall be as prescribed. 46. May Refuse to Accept Goods: If there is suspicion that any goods are damaged, the consignee may refuse to accept the goods until inspection of such damage is carried out. 47. Liability Regarding Goods: (1) The Board shall be liable for the complete or partial loss of, damage to, or delay in delivery of goods mentioned in the Railway Receipt. (2) Notwithstanding anything contained in Sub-section (1), the Board shall not be liable for the loss of, damage to, or delay in delivery of goods due to the following reasons:- (a) Goods of a nature requiring packing not being packed or not properly packed, (b) Goods not loaded by the consignor or unloaded by the consignee as per registration, (c) Goods sent by filling a wrong or incomplete Forwarding Note, (d) Goods carried in an open wagon at the request of the consignor or consignee, (e) Complete or partial damage caused by the defect of the goods or by the nature of any goods (such as breakage, deterioration, decay, drying up, CHAPTER-11 Board's Fund and

Audit 60.

Board's Fund: (1) The Board shall have its own separate fund.

(2) The fund pursuant to sub-section (1) shall consist of the following amounts:-

- (a) Amounts received from the Government of Nepal,
- (b) Amounts received from foreign individuals, governments, international associations or organizations,
- (c) Amounts received from passenger fares or freight charges,
- (d) Amounts received from leasing or renting out the Board's land, and
- (e) Other amounts earned by the Board.

(3) Before receiving the amounts pursuant to clause (b) of sub-section (1), the Board shall obtain the approval of the Ministry of Finance, Government of Nepal.

(4) All expenses of the Board shall be borne from the amounts deposited in the fund pursuant to sub-section (2).

(5) The amounts in the fund pursuant to sub-section (1) shall be deposited by opening an account in any commercial bank of "A" class established pursuant to the prevailing law relating to banks and financial institutions as specified by the Board.

(6) The operation of the Board's account shall be as specified. 61. Accounts and Audit: (1) The accounts of the income and expenditure of the Board shall be maintained in accordance with the prevailing law.

(2) The Board shall conduct or cause to be conducted internal audit and internal control of income and expenditure as specified.

(3) The final audit of the income and expenditure of the Board shall be conducted by the Auditor General.

(4) The Ministry may, if it so desires, inspect or cause to be inspected the accounts of the income and expenditure of the Board and related documents at any time. CHAPTER-12

Offences and Punishment

62.

Offences: If any person does or causes to do any of the following acts, he/she shall be deemed to have committed or caused to commit an offence under this Act:- (a) Setting fire to a train or railway, or placing explosive substances, creating any flammable substance or electrical ambush, or obstructing the operation of a train in any other manner, (b) Occupying a train or railway, or doing any act causing loss or damage to train or railway property in any other manner, (c) Throwing any object at a train or railway in a manner likely to cause a train accident, placing stones, wood or any other object on the railway track, or any person other than an authorized officer removing the railway track or related nails, bolts, sleepers, etc., loosening joints, or operating, tampering with, or shutting down other spare parts, (d) Doing any act likely to cause a train accident, including hiding, operating, removing, displaying differently, changing, erasing, removing, or scraping any signal or light of a train or railway, (e) Any person other than an authorized officer stopping a moving train without reason, or refusing to drive a train, or creating obstruction to prevent the train from running, (f) Driving a train after consuming alcoholic or narcotic substances, (g) Quarreling with railway employees or passengers, making noise inside the train, or using abusive, obscene, or insulting language towards anyone, (h) Preventing or creating obstruction to a railway employee from performing his/her official duties, (i) Any person other than an authorized person using or interfering with any communication equipment installed for railway purposes, (j) Driving a train without obtaining a license for a train driver or assistant driver pursuant to this Act, (k) Giving one's obtained train driver or assistant driver license to another person for use

in driving a train, (l) Altering the number, letter, date, or content of a permit or ticket for the purpose of traveling or causing to travel on a train, (m) Selling tickets or distributing permits without the Board's permission, (n) Submitting false claims to the Board stating that passenger luggage or goods have been lost, destroyed, damaged, or not returned, or providing false details for that purpose, (o) Causing unnecessary trouble to passengers in a train, (p) Any person other than an authorized person removing, tearing, or tampering with the content or altering public notices issued for railway operation, (q) Throwing dust or dirt or throwing dirt or any other object at passengers on a train or railway, (r) Traveling by sitting in a prohibited place of the train, and (s) Doing any other act contrary to this Act. 63.

Punishment: (1) If any person commits or causes to commit any of the following offences, the Adjudicating Officer shall impose punishment as follows:- (a) For an offender under clause (a) or (b) of Section 62, if anyone dies from such act, punishment equivalent to murder in accordance with prevailing law, and if no one dies, imprisonment for up to ten years and a fine of up to one hundred thousand rupees, (b) For an offender under clause (c) or (d) of Section 62, imprisonment for up to seven years and a fine of up to one hundred thousand rupees, (c) For an offender under clause (e) or (f) of Section 62, imprisonment for up to one year and a fine of up to two hundred thousand rupees, (d) For an offender under clause (g) or (h) of Section 62, imprisonment for up to one year or a fine of up to ten thousand rupees or both, and (e) For an offender under clause (i), (e) and (k) of Section 62, imprisonment for up to six months and a fine of up to fifty thousand rupees. (2) If any person commits any of the following offences, the Railway Administration may, based on a report from the concerned employee of the Board, impose a fine as follows:- (a) For an offender under clause (l) or (m) of Section 62, a fine of up to two hundred thousand rupees, and (b) For an offender under clause (n) of Section 62, a fine of up to fifty thousand rupees. (3) If any person commits any of the following offences, the Station Master may, based on a report from the Board's ticket checker or concerned employee, immediately impose a fine as follows:- (a) For an offender under clause (o) of Section 62, a fine of up to twenty thousand rupees, (b) For an offender under clause (p) or (q) of Section 62, a fine of up to ten thousand rupees, and (c) For an offender under clause (r) or (s) of Section 62, a fine of up to five thousand rupees. 64. Additional Punishment: If any person steals railway property or causes damage or loss in any other manner, there shall be an additional punishment of imprisonment for up to three years in addition to the punishment under prevailing law. 65. Punishment for Attempt or Abetment: Whoever attempts to commit or abets an offence punishable under sub-section (1) of Section 63 shall be liable to half the punishment prescribed for the principal offender. 66.

Compensation to be Recovered: If any loss or damage is caused to the property of the railway, passengers, or any other person from any offence under Section 62, the Adjudicating Officer shall order the recovery of compensation for such loss or damage from the concerned offender. 67. No Punishment: Except in cases amounting to an offence under this Act, if any act done in good faith by a train driver or assistant driver or a person involved in train operation in the course of performing his/her duty causes any loss, damage, or injury to any person or his/her property or to railway structures, no punishment shall be imposed on such train driver, assistant driver, or person involved in train operation for that act. 68. Power to Take Immediate Control: (1) A person committing an offence under Section 62 may be taken under immediate control by a security personnel deployed for railway security, an authorized officer under prevailing law, or a railway employee. (2) Among the persons taken under control pursuant to sub-section (1), in the case of a person against whom the Railway Administration or Station Master has to take action under this Act, the Railway Administration or Station Master shall take action and impose punishment under this Act, and in the case of other persons, the authorized officer or railway employee shall hand them over to the concerned authority or office for action under prevailing law. (3) The concerned authority or office shall initiate action under this Act

against the person handed over pursuant to sub-section (2). 69. Adjudicating Officer: The concerned District Court shall have the authority to initiate proceedings and adjudicate offences punishable under sub-section (1) of Section 63. 70. Appeal: (1) A person dissatisfied with the decision on fine made by the Railway Administration pursuant to sub-section (2) of Section 63 may file an appeal with the concerned District Court within thirty-five days from the date of such decision. (2) A person dissatisfied with the decision on fine made by the Station Master pursuant to sub-section (3) of Section 63 may file an appeal with the Railway Administration within thirty-five days from the date of such decision. (3) A person dissatisfied with the decision made by the Adjudicating Officer pursuant to Section 69 may file an appeal with the concerned High Court within thirty-five days from the date of such decision. 71.

Government of Nepal to be Plaintiff: Cases relating to offences punishable under sub-section (1) of Section 63 shall be conducted with the Government of Nepal as the plaintiff, and such cases shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074. 72. Limitation: (1) A complaint regarding an offence under clause (a) of Section 62 may be filed at any time. (2) A complaint regarding an offence under clauses (b), (c), (d) and (e) of Section 62 shall not be filed after the expiry of six months from the date of knowledge of such offence. (3) For offences other than those under sub-sections (1) and (2), a complaint shall not be filed after the expiry of three months from the date of such offence. CHAPTER-13 Miscellaneous 73. Train Drivers or Assistant Drivers May be Hired on Contract: Notwithstanding anything contained elsewhere in this Act, if the post of train driver or assistant driver cannot be filled from Nepali citizens, the Board may employ qualified foreign citizens on a contract basis for a period as determined by the Ministry. 74. Power to Form Sub-Committee: (1) The Board may form a sub-committee as required to assist in carrying out its functions under this Act. (2) The terms of reference and procedures of the sub-committee formed pursuant to sub-section (1) shall be as determined by the Board at the time of forming such sub-committee. 75. Railway Operation in Joint Venture: The Board may, with the prior approval of the Government of Nepal, construct or expand a railway or operate railway services in joint venture with domestic or foreign investors. 76.

Power to Entrust Construction, Maintenance, Operation or Management of Railway: (1) If the Board, with the prior approval of the Government of Nepal, deems it necessary to have any or all works related to the construction, maintenance, operation, or management of a railway carried out by an entity in the private sector, it may, in accordance with prevailing law, enter into an agreement with such entity and entrust the work to that entity. (2) While entrusting work pursuant to sub-section (1), any structure, equipment, and property related to such work that is in the possession, ownership, or custody of the Board may be made available for use by such entity. (3) While entering into an agreement pursuant to sub-section (1), the provisions relating to the use of structures, equipment, and property in the possession, ownership, or custody of the Board, the duration of the agreement, the consideration receivable by the contracting party, and other related matters shall be as mentioned in the agreement. (4) The entity entering into an agreement pursuant to sub-section (1) shall, after the expiry of the agreement period, return to the Board any structure, equipment, and property in the possession, ownership, or custody of the Board that it has used, in accordance with the terms stipulated in the agreement. (5) Other matters relating to the construction, maintenance, operation, and management of the railway shall be as mentioned in the agreement. 77. Passengers or Goods Not to be Loaded Beyond Capacity: A train shall not be operated with passengers and goods loaded beyond the capacity of the train. 78. Seats to be Reserved: The Board shall reserve seats as specified for very important or important persons, senior citizens, persons with disabilities, children, women, and incapacitated persons. 79. Railway Operation through Automated Technology: The Board may operate or cause to operate railway services through computerized or automated technology without a train driver and assistant driver, as

specified. 80. To be Environmentally Friendly: The Board shall operate railways and railway services in an environmentally friendly manner, fulfilling the specified standards. 81.

Cooperation to be Provided: (1) For the implementation of this Act and the smooth operation of train and railway services, the Board may request cooperation from the Government of Nepal or concerned bodies of the government on matters including security arrangements. (2) It shall be the duty of the Government of Nepal or the concerned body to provide cooperation on the matter for which the Board has requested cooperation pursuant to sub-section (1). 82. Land Acquisition: (1) The Board may make a request to the Government of Nepal for the acquisition of land required for the railway in accordance with prevailing law. (2) While making a request pursuant to sub-section (1), the Board shall study and assess the land required for the railway and submit the land acquisition plan for such land and all details required for land acquisition under prevailing law. (3) Upon receipt of a request pursuant to sub-section (1), the Government of Nepal may arrange for the acquisition of land for the Board in accordance with prevailing law. (4) Notwithstanding anything contained elsewhere in this Section, if any land owned by the Government of Nepal is required for the railway, the Government of Nepal may, upon the request of the Board, make such land available to the Board. 83. Insurance to be Provided: The Board shall arrange insurance as specified for trains, train drivers and assistant drivers, passengers, passenger luggage, goods, railway employees, and third parties. 84. Delegation of Authority: (1) The Board may, as necessary, delegate some of the powers vested in it under this Act or the Rules framed under this Act to any member of the Board, the sub-committee pursuant to Section 74, any body under the Government of Nepal, or the Railway Administration. (2) The Railway Administration may, as necessary, delegate some of the powers vested in it under this Act or the Rules framed under this Act to any authorized employee of the Board. Provided that the power of the Railway Administration to adjudicate cases under this Act shall not be delegated. 85. Annual Report to be Submitted: The Board shall submit an annual report to the Ministry within three months from the date of expiry of each fiscal year, disclosing the following matters:- (a) Details of work performed during the year and expenses incurred thereof, (b) The Board's work plan for the upcoming year and the estimated budget required for it and its sources, (c) Details of the Board's income and expenditure, and (d) Other details as specified. 86.

To be According to Prevailing Law: Matters provided for in this Act shall be according to this Act, and other matters shall be according to the prevailing law. 87. Contact with Government of Nepal: The Board shall maintain contact with the Government of Nepal through the Ministry. 88. Power to Make Rules: The Government of Nepal may make necessary Rules for the implementation of this Act. 89. Act Implementation Review: The Ministry shall review the implementation of this Act within one year of the completion of five years from the commencement of this Act, and subsequently within one year after every five years, and shall submit the report thereof to the relevant committee of both Houses of the Federal Parliament. 90. Power to Make Regulations, Directives, Procedures, and Standards: (1) Subject to this Act and the Rules framed under this Act, the Board may make Regulations on the following matters:- (a) Relating to the functioning of the Board, (b) Relating to terms of service and facilities of the Board's employees, (c) Relating to the conduct of the Board's financial administration. (2) While making Regulations pursuant to sub-section (1), the Board shall obtain the consent of the Ministry of Finance, Government of Nepal, on matters that impose an additional financial burden on the Government of Nepal. (3) The Board may, as necessary, make Directives, Procedures, and Standards on technical matters related to railway service operation, not inconsistent with this Act and the Rules framed under this Act. (4) Regulations, Directives, and Procedures made by the Board pursuant to this Section shall come into effect after approval from the Ministry, and such Regulations, Directives, and Standards shall be published for public information. 91. Repeal and Saving: (1) The Railway Ordinance, 2078 is hereby repealed. (2) All acts and actions done under the Railway Ordinance, 2078 shall

be deemed to have been done under this Act.